

Whangarei District Council Meeting Minutes

Date: Wednesday, 28 August, 2024
Time: 9:00 a.m.
Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo
Cr Nicholas Connop
Cr Ken Couper
Cr Jayne Golightly (Teams)
Cr Phil Halse
Cr Deborah Harding
Cr Patrick Holmes
Cr Scott McKenzie
Cr Marie Olsen
Cr Carol Peters
Cr Simon Reid
Cr Phoenix Ruka
Cr Paul Yovich

Not in Attendance Cr Gavin Benney

Scribe C Brindle (Senior Democracy Adviser)

1. Karakia/Prayer

Cr Carol Peters opened the meeting with karakia.

Cr Nicholas Connop joined the meeting at 9:01am following karakia.

2. Declarations of Interest / Take Whaipānga

No declarations of interest were made.

3. Apologies / Kore Tae Mai

Cr Gavin Benney (leave of absence)

Cr Jayne Golightly joined the meeting via Teams at 9:03am following the apologies.

4. Decision Reports / Whakatauripoata

4.1 Dog Management Policy and Bylaw – Deliberations

4.1.1 Dog Management Policy and Bylaw Replacement Attachments 1 and 2

Item 4.1.1 providing replacement attachments 1 and 2 including tracked changes, was tabled at the meeting.

The motion was taken in parts.

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That Council:

1. Approves the following dog access rules, as provided in section 4.1 of this report, to be included in the final Dog Management Policy (the Policy):
 - a. City centre: Option 1 to retain the proposed default on-leash rule;
 - b. Hikurangi: Option 1 to allow dogs off a leash in the open grass area immediately south of the transfer station;
 - c. Marsden Bay: Option 1 to allow dogs on a leash on the beach and foreshore eastward to the groyne;
 - d. Panorama Drive Reserve (upper): Option 1 to allow dogs off a leash in the open grass area southeast of the playground;
 - e. North Ruakākā Beach: Option 1 to allow dogs off a leash on the beach and foreshore from the Mair Road beach access southward to a line eastward from the eastern end of Taotahi Walk;
 - f. Tip Road northwards (Uretiti Beach): Option 1 to allow dogs off a leash on the beach and foreshore from a line eastward of the southern boundary of the Uretiti Beach Conservation Campground southwards to the beach access point at the end of Tip Road;
 - g. Urquharts Bay: Option 1 to reinstate the default beach and foreshore rule;
 - h. Whangaruru/Bland Bay: Option 1 to prohibit dogs on the beach and foreshore from the northern end of Bland Bay southward to a line northeast of the northernmost point of Logan Nicks Reserve; and from Waitapu Rock eastward to the western end of Tuparehuia Bay;

2. Agrees that, with the exception of the changes proposed in 1 above, no further changes are required to the dog access rules as provided in Schedules 1 and 2 of the Policy;
3. Approves the summer season rule as provided in clause 2.6 of Schedule 1 of the Policy;
4. Approves the following recommendations for the Policy and Dog Control Bylaw (the Bylaw), as provided in sections 4.2 and 4.3 of this report:
 - a. Policy topic 1: Option 1 (no change to proposal);
 - b. Policy topic 2: Option 1 to approve the proposed changes to the Policy as provided in track changes in Attachment 1;
 - c. Bylaw topic 1: Option 1 (no change to proposal);
 - d. Bylaw topic 2: Option 1 to approve the proposed changes to the Bylaw as provided in track changes in Attachment 2;
5. Agrees that, with the exception of the changes proposed in 4 above, no further changes are required to the Policy and Bylaw.

Amendment

Moved By Cr Simon Reid

Seconded By Cr Paul Yovich

Recommendation 1a amended to Option 2: 'a. *Return to status quo dog ban in the city centre.*'

On the amendment being put Cr Scott McKenzie called for a division:

	For	Against	Abstain
His Worship the Mayor		X	
Cr Nicholas Connop		X	
Cr Ken Couper		X	
Cr Phil Halse	X		
Cr Deborah Harding		X	
Cr Patrick Holmes		X	
Cr Scott McKenzie		X	
Cr Marie Olsen	X		
Cr Carol Peters		X	
Cr Simon Reid	X		
Cr Phoenix Ruka		X	

Cr Paul Yovich	X		
Results	4	8	0

The amendment was Lost (4 to 8)

Cr Jayne Golightly was offline during the vote on the amendment.

On the motion being put Cr Simon Reid called for divisions on recommendations 1a to h:

That Council:

1. Approves the following dog access rules, as provided in section 4.1 of this report, to be included in the final Dog Management Policy (the Policy):

- a. City centre: Option 1 to retain the proposed default on-leash rule;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen		X	
Cr Carol Peters	X		
Cr Simon Reid		X	
Cr Phoenix Ruka	X		
Cr Paul Yovich		X	
Results	9	4	0

The motion was Carried (9 to 4)

- b. Hikurangi: Option 1 to allow dogs off a leash in the open grass area immediately south of the transfer station;

	For	Against	Abstain
His Worship the Mayor	X		

Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- c. Marsden Bay: Option 1 to allow dogs on a leash on the beach and foreshore eastward to the groyne;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- d. Panorama Drive Reserve (upper): Option 1 to allow dogs off a leash in the open grass area southeast of the playground;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- e. North Ruakākā Beach: Option 1 to allow dogs off a leash on the beach and foreshore from the Mair Road beach access southward to a line eastward from the eastern end of Taotahi Walk;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		

Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- f. Tip Road northwards (Uretiti Beach): Option 1 to allow dogs off a leash on the beach and foreshore from a line eastward of the southern boundary of the Uretiti Beach Conservation Campground southwards to the beach access point at the end of Tip Road;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- g. Urquharts Bay: Option 1 to reinstate the default beach and foreshore rule;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		

Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

- h. Whangaruru/Bland Bay: Option 1 to prohibit dogs on the beach and foreshore from the northern end of Bland Bay southward to a line northeast of the northernmost point of Logan Nicks Reserve; and from Waitapu Rock eastward to the western end of Tuparehuia Bay;

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse	X		
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	13	0	0

The motion was Carried (13 to 0)

Unanimous

On the motion being put Cr Simon Reid called for a division on recommendations 2 to 5:

2. Agrees that, with the exception of the changes proposed in 1 above, no further changes are required to the dog access rules as provided in Schedules 1 and 2 of the Policy;
3. Approves the summer season rule as provided in clause 2.6 of Schedule 1 of the Policy;
4. Approves the following recommendations for the Policy and Dog Control Bylaw (the Bylaw), as provided in sections 4.2 and 4.3 of this report:
 - a. Policy topic 1: Option 1 (no change to proposal);
 - b. Policy topic 2: Option 1 to approve the proposed changes to the Policy as provided in track changes in Attachment 1;
 - c. Bylaw topic 1: Option 1 (no change to proposal);
 - d. Bylaw topic 2: Option 1 to approve the proposed changes to the Bylaw as provided in track changes in Attachment 2;
5. Agrees that, with the exception of the changes proposed in 4 above, no further changes are required to the Policy and Bylaw.

	For	Against	Abstain
His Worship the Mayor	X		
Cr Nicholas Connop	X		
Cr Ken Couper	X		
Cr Jayne Golightly	X		
Cr Phil Halse		X	
Cr Deborah Harding	X		
Cr Patrick Holmes	X		
Cr Scott McKenzie	X		
Cr Marie Olsen	X		
Cr Carol Peters	X		
Cr Simon Reid	X		
Cr Phoenix Ruka	X		
Cr Paul Yovich	X		
Results	12	1	0

The motion was Carried (12 to 1)

Cr Halse requested his vote against be recorded.

5. Closure of Meeting / Te katinga o te Hui

Cr Carol Peters closed the meeting with karakia at 9:41am.

Confirmed this 26th day of September 2024

His Worship the Mayor (Chairperson)